

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
August 24, 2026, 8:30 AM, Department 2
101 Maple Street, Auburn**

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NOTICE: CHANGE OF CALENDAR DEPARTMENT AND DATES

Beginning July 6, 2026, the Probate Calendar will be heard Mondays, 8:30 a.m., in Department 2, located at the Historic Courthouse, 101 Maple Street, Auburn.

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **August 24, 2026, 8:30 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are not a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0004910 Roberson Revocable Trust - In Re the

Appearance is required for continued hearing on motion to set aside judgment approving settlement agreement or, in the alternative, to enforce settlement agreement.

2. S-PR-0010429 Ugo G Cuneo & Leonora Cuneo Rev Trust; In re the

3d trustee account is recommended for approval as prayed.

3. S-PR-0011966 In Re the Luri Gemora Rev Trust

Appearance is required for hearing on petition to instruct trustees and for other relief.

Missing notice of hearing. Missing service of notice of hearing.

4. S-PR-0012076 In Re the Rigler Fam 1996 Irrev Trust

Clarification is needed: trustees allege that they "identified expenditures incurred" which "should not have been paid" and which are included in "the Note Receivable of \$35,644.33." Trustees should explain the origin and terms of this note, including promisor and terms of payment.

5. S-PR-0012172 In Re the Estate of Putnam, Virginia

Personal appearance of executor Patricia Hopper is required for order to show cause hearing re sanctions, suspension, and removal of executor.

6. S-PR-0012748 In Re the Estate of Stefani, Barbara Ann

Missing notice of hearing for petition for final distribution. Notice previously filed was for a hearing on July 17 that never occurred. The matter was rescheduled by the court, then rescheduled again at petitioner's request. No other notice was ever filed or served.

The report and account are not supported by any acceptable inventory. Both the original and revised I&A's impermissibly include personal representative appraisal of personal property. Personal representative may not appraise any property, personal or real, other than cash or cash equivalents. Referee appraisal is required of all personal property, including all items of jewelry.

Administrator impermissibly reports disposition of estate vehicle as both an unauthorized preliminary distribution resulting from conversion by Tera Stefani and as a sale resulting in gain on sale. An asset cannot both have been impermissibly distributed to an heir and sold by the estate. Any action by a distributee after distribution is immaterial to the estate, its administration, and administrator's account. Administrator offers no basis to value the distribution at anything other than the I&A value for the vehicle.

Administrator response is needed: administrator argues that Tera Stefani converted more than \$155,597 in estate assets. Administrator offers no explanation for the failure to safeguard or attempt to recover any assets so converted by Tera Stefani.

It is recommended counsel's requested extraordinary fees be reduced to \$2,250.00, comprising 3.5 hours of attorney time at \$400/hr and 4.25 hours of paralegal time at \$200/hr. The requested attorney rate exceeds a reasonable rate for the services described in counsel's declaration. The requested paralegal rate is exceptionally inflated for the services described in counsel's declaration.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.

7. S-PR-0012937 In Re the Estate of Bakos, John Edward MD

Petition to administer estate (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Petition to administer estate (M Bakos)

Appearance is required for continued hearing on petition to administer estate.

Will contest (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Missing 30 days' service of summons to all persons entitled to service of notice of the petition to probate the will. Prob.C. § 8250(a).

Ex parte application for trial preference

Appearance is required for hearing on ex parte application for trial preference.

It is again recommended the application be denied for the reasons set forth in prior calendar notes.

8. S-PR-0013289 In Re the Estate of Wiley, Peter Cornelius

Petitioner response is needed: petitioner reports that estate real property was sold for \$525,000. The allegations instead establish that no real property was sold (real property remains in the estate; there are no proceeds of sale in the estate). Petitioner and other heirs appear to have agreed upon a valuation for distribution of the property. Valuation change for distribution purposes does not constitute sale of property. Because no sale occurred, there is also no gain on sale of real property for any purpose, including calculation of attorney fees.

Proposed distribution is contrary to intestacy. As prayed, petitioner would receive approximately 20.4% of the estate; Chornyy, 26.5%; and D Wiley 53%. Intestacy requires equal distributions of assets determined by date-of-distribution value; petitioner offers no factual or legal basis for unequal distributions of the estate.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.

9. S-PR-0013436 In Re the Stephen Sankoff Liv Trust

Appearance is required for continued hearing on petition to determine 2015 deed is invalid and to determine trust property.

10. S-PR-0013480 In Re the Estate of Brooks, Arnold F.

Petition for final distribution is recommended for approval as prayed.

11. S-PR-0013674 In Re the Estate of Ayers, Michael David

Petition for final distribution is recommended for approval as prayed.

12. S-PR-0013781 In Re the Estate of Brar, Premjeet

Appearance is required for hearing on petition to administer estate.
Missing proof of publication of notice of hearing for August 24 hearing.

13. S-PR-0013782 In Re the Estate of Sohi, Puneet

Appearance is required for hearing on petition to administer estate.
Missing proof of publication of notice of hearing for August 24 hearing.

14. S-PR-0013840 In Re the Estate of Shaban, David A.

Petition to terminate estate administration is recommended for approval as prayed.

15. S-PR-0013931 In Re the Martin Fam Trust

Appearance is required for continued hearing on petition contesting validity of 2014 trust amendment and for other relief.

The petition is primarily a Prob.C. § 17200 petition, requiring notice under Prob.C. § 17203. There is no provision in the Probate Code for issuance or service of a summons for

a trust petition, and petitioner may not seek to default a responding party for failure to respond to a summons. See, for example, Prob.C. § 1043(a).

Note: contrary to the information stated on page 2 of the petition, Local Rule 20.2.3 does not apply to this proceeding, no tentative ruling is issued by the court, and there is no requirement to notify the court of any request for oral argument. See Local Rule 80.1.4 and Prob.C. § 1043(a).

16. S-PR-0013940 In Re the Estate of O'Leary, Timothy Patrick

Missing notice of hearing for amended petition to administer estate. Missing service of notice of hearing. Missing proof of publication of notice of hearing.

Clarification is needed: ¶¶ 5a(3) & 8) allege decedent was survived by a child; ¶ 7a alleges decedent was not survived by issue. A child of decedent is issue of decedent. Prob.C. § 50.

Clarification is needed: petitioner requests both full and limited IAEA powers. Both full powers and limited powers cannot be granted simultaneously.

17. S-PR-0013944 In Re the Estate of O'Leary, Timothy Patrick

Appearance is required for hearing on amended petition.

The petition does not sufficiently state a legal basis for relief; it is recommended the petition be denied, as follows:

Prob.C. § 21700, cited in the caption and in the petition, does not establish a procedure to petition for relief. Instead, that section establishes standards for proving a promise to make a devise or other facts. Moreover, the verified petition does not appear to satisfy any provision of § 21700 to prove a promise to grant a life estate in the Auburn property to petitioner.

The petition does not show legal grounds for relief under Prob.C. § 850 and, if petitioner were to proceed under that section, is not supported by any notice or service. See Prob.C. § 851.

The petition does not show legal grounds for relief under Prob.C. § 17200 and, if petitioner were to proceed under that section, is not supported by any notice or service. See Prob.C. § 17203. If the court were to construe the petition as a § 17200 petition, it would be recommended the petition be denied under Prob.C. § 17202 as unnecessary for the protection of the interests of petitioner. Even if the court were to find that the trust § 6.02 terms were applicable to the Auburn property, § 6.02 grants trustee certain discretionary authority but does not give a beneficiary an enforceable right or estate in property. See trust §§ 6.02 and 13.03(r).

The petition does not show legal grounds for an action on a creditor claim against decedent's estate. No creditor claim has been rejected by a personal representative of the

estate of settlor. Rejection of a creditor claim is a precondition to bringing suit against the estate. Prob.C. § 9351.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.2.1.

18. S-PR-0013949 In Re the Estate of Fagan, Merlin L. Jr.

Petition to administer estate is recommended for approval as prayed.

19. S-PR-0014061 In Re the Estate of Triolo, Kristin Deann

Missing notice of hearing and service of notice of hearing for amended spousal property petition. Amended petition requires complete re-noticing. C.R.C. 7.53.

Missing copy of the will attached to the petition. See ¶ 4c. ¶ 11 implies the will is a pourover will; if all assets pass to decedent's living trust, the will precludes spousal property relief as no assets pass from the estate to the surviving spouse.

Missing Attachment 7 (see ¶ 7), the facts supporting the requested relief.

Clarification is needed: petitioner now requests only relief under §§ 1a & 7a—determination of decedent's separate and community interests passing to survivor. Petitioner does not pray for any confirmation of his community interest (see unused §§ 1b & 7b). Attachment 7a must include only decedent's community property and may not include any property of survivor; as filed, Attachment 7a refers only to "decedent's interest" without identifying any separate or community interest in the listed property. Note that any community interest of decedent is limited to no more than an undivided 1/2 interest.

20. S-PR-0014147 In Re the Estate of Williams, Roy Bobby

Missing relationship(s) of persons listed in ¶ 9 to decedent.

Attachment 7 is insufficient to establish that the subject property is community property. Petitioner admits the property was obtained as a separate asset and record title remains in decedent individually. The form of title presumption of Evid.C. § 662 controls over any community presumption of Fam.C. § 706, although both are rebuttable. In re Brace (2020) 9 Cal.5th 903, 934; Estate of Wall (2021) 68 Cal.App.5th 168. Here, petitioner admits the form of title is decedent's separate property. Petitioner offers insufficient evidence of transmutation of title: separate property may be pledged as collateral for a community indebtedness without any transmutation. Petitioner implies the marital community should be entitled to Moore-Marsden credits, but offers no proposed calculation of such credits.

Attachment 7a fails to describe only decedent's separate and community interests which petitioner claims are property passing to her. There is no request for the companion

relief of confirming petitioner's community property interests (see unused ¶¶ 1b & 7b). Note that any community interest of decedent is limited to no more than an undivided 1/2 interest.

21. S-PR-0014148 In Re the Estate of Mathew, Gary Michael

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing. Missing publication of notice of hearing.

Note: missing signed Duties form (D147). Clerk cannot issue letters until signed Duties form is filed.

22. S-PR-0014149 In Re the Estate of Osborne, Elizabeth

Missing sufficient notice of hearing. Notice as filed, served, and published relates only to an August 21, 2026, hearing which the court rescheduled. Petitioner was notified of the revised court date by an order filed June 5. Missing any notice, service, or publication for the rescheduled August 24 date.

23. S-PR-0014150 In Re the Des Jardin Fam Liv Trust

Petition to terminate subtrust is recommended for approval as prayed.

24. S-PR-0014151 In Re the Robert H. Fine Fam Trust

Petition to determine trust property is recommended for approval as prayed.

25. S-PR-0014152 In Re the Martinez Fam Trust

Appearance is required for hearing on petition to remove trustee and for other relief.

26. S-PR-0014153 In Re the Nakatani Fam Trust

Appearance is required for hearing on petition to remove trustee.

Missing sufficient notice of hearing for petition to remove trustee. Notice filed June 30 is for an August 21 hearing that was changed by the court. Petitioner was notified of the modified hearing date by order filed June 5. Missing notice of hearing for the August 24 hearing.

27. S-PR-0014155 In Re the John and Diane Vill Liv Trust

Petition to determine trust property is recommended for approval as prayed.

28. S-PR-0014156 In Re the Tammy Santucci Liv Trust

Missing notice of hearing for petition to determine trust property. Missing 30 days' personal service of notice of hearing with copy of the petition to Gregg Gerardi and Rayna Gerardi. Missing 30 days' mailed service to all other persons interested in the Santucci trust.